

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephanie Dukich	Team: Squad #8	CCRB Case #: 202104497	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 07/18/2021 12:00 PM	Location of Incident: § 87(2)(b)	Precinct: 45	18 Mo. SOL 1/18/2023	EO SOL 1/18/2023	
Date/Time CV Reported Fri, 07/30/2021 10:25 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 07/30/2021 10:25 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Fechtmann	11145	954800	ESS 03
2. PO John Ohagan	16721	957913	ESS 03
3. PO Daniel Trentowski	16847	956305	ESS 03

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Maggie Gonzalez	12264	965731	045 PCT
2. SGT Edward Lawyerr	01852	949201	045 PCT
3. POF Jennifer Sugrim	28015	939439	045 PCT
4. POM Sean Hackeling	22607	965163	045 PCT
5. POM Jason Munoz	29465	969242	045 PCT
6. POM Eduardo Lopez	15490	967587	045 PCT
7. POM Michael Longo	03305	967583	045 PCT
8. POM Jacob Mizrahi	28372	965345	045 PCT
9. SGT Jessica Picarello	05025	950461	045 PCT
10. CPT Michael Piper	00000	945281	041 PCT
11. PO Dariusz Glasnapp	07598	941819	ESS 03

Officer(s)	Allegation	Investigator Recommendation
A. PO John Ohagan	Abuse: Police Officer John Ohagan damaged § 87(2)(b)'s property.	§ 87(2)(b)
B. PO Daniel Trentowski	Abuse: Police Officer Daniel Trentowski damaged § 87(2)(b)'s property.	§ 87(2)(b)
C. POM Brian Fechtmann	Abuse: Police Officer Brian Fechtmann § 87(2)(b)'s property.	§ 87(2)(b)
D. PO John Ohagan	Abuse: Police Officer John Ohagan entered § 87(2)(b) in the Bronx.	§ 87(2)(b)
E. PO Daniel Trentowski	Force: Police Officer Daniel Trentowski restricted § 87(2)(b)'s breathing.	§ 87(2)(b)
F. POM Brian Fechtmann	Force: Police Officer Brian Fechtmann restricted § 87(2)(b)'s breathing.	§ 87(2)(b)
G. PO John Ohagan	Force: Police Officer John Ohagan restricted § 87(2)(b)'s breathing.	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
H.POM Brian Fechtmann	Abuse: Police Officer Brian Fechtmann searched § 87(2)(b) in the Bronx.	
I.PO John Ohagan	Abuse: Police Officer John Ohagan searched § 87(2)(b) in the Bronx.	
§ 87(4-b), § 87(2)(g)		

Case Summary

On July 30, 2021, § 87(2)(b) filed this complaint with the CCRB in-person.

On July 18, 2021, at approximately 12:00 p.m., § 87(2)(b) was in his bedroom at § 87(2)(b) in the Bronx when he heard banging on his door. Police Officer John O'Hagan, Police Officer Brian Fechtmann, and Police Officer Daniel Trentowski, all of ESS 3, drilled a hole into his door to see inside (**Allegation A-C: Abuse of Authority**, § 87(2)(g) § 87(2)(b) opened his door, at which time PO O'Hagan entered his room, followed by PO Trentowski, and PO Brian Fechtmann (**Allegation D: Abuse of Authority**, § 87(2)(g) All three officers then allegedly placed their knees onto his back (**Allegations E-G: Force**, § 87(2)(g) PO O'Hagan and PO Fechtmann searched § 87(2)(b)'s room (**Allegations H and I: Abuse of Authority**, § 87(2)(g) § 87(2)(g)

§ 87(4-b), § 87(2)(g)

§ 87(2)(b)

BWC from Police Officer Jennifer Sugrim of the 45th Precinct, Police Officer Maggie Gonzalez of the 45th Precinct, Police Officer Sean Hackeling of the 45th Precinct, Police Officer Jason Munoz of the 45th Precinct, Police Officer Eduardo Lopez of the 45th Precinct, Police Officer Michael Longo of the 45th Precinct, Police Officer Jacob Mizrahi of the 45th Precinct, Sergeant Jessica Picarello of the 45th Precinct, Captain Michael Piper of the 41st Precinct, and PO Fechtmann of ESS 03 was obtained by the investigation (Board Review 02-04).

Cell phone footage capturing a portion of the incident was provided to the investigation by § 87(2)(b) (Board Review 05).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer John O'Hagan damaged § 87(2)(b)'s property.

Allegation (B) Abuse of Authority: Police Officer Daniel Trentowski damaged § 87(2)(b)'s property.

Allegation (C) Abuse of Authority: Police Officer Brian Fechtmann damaged § 87(2)(b)'s property.

Allegation (D) Abuse of Authority: Police Officer John O'Hagan entered § 87(2)(b) in the Bronx.

On July 29, 2021, § 87(2)(b) stated to the CCRB that on July 18, 2021, at approximately 12:00 p.m., he was in his bedroom located on the § 87(2)(b) floor of § 87(2)(b) in the Bronx, when he suddenly heard a loud banging on his door. § 87(2)(b)'s residence is a private house, and he lives with several roommates. Through the door, somebody stated that it was the police knocking. § 87(2)(b) did not recognize the voice and declined to open the door, as he believed that one of his roommates were harassing him by impersonating the police. One of § 87(2)(b)'s roommates, § 87(2)(b) had previously placed a note on his door letting him know that she would report him to the police for acting "rude". § 87(2)(b) denied ever being involved in a

physical altercation with any of his roommates.

The knocking continued and at approximately 1:05 p.m., § 87(2)(b) called 911 to confirm whether there were officers outside his bedroom door. The 911 operator told § 87(2)(b) that they would call back once they confirmed. The knocking and demands to open the door grew louder still, and § 87(2)(b) called 911 several more times, until the fourth operator he spoke with confirmed that officers had in fact been sent to his location and that a lieutenant was present. § 87(2)(b) stayed on the line with this operator for advice on how to proceed.

At approximately 1:25 p.m., an officer suddenly punctured § 87(2)(b)'s door with a blade at least six inches in length, stating this was "to see if someone was inside or not". An officer then asked, "What was the argument you had with § 87(2)(b) § 87(2)(b) denied interacting with § 87(2)(b) on the day of the incident. The officers continued to tell § 87(2)(b) to open the door § 87(2)(b) asked the officers whether they had a warrant, to which an officer responded "No, we have no warrant". § 87(2)(b) then said, "Please leave premises."

Upon verifying that officers were present, the 911 operator advised § 87(2)(b) to open the door, which he did. § 87(2)(b)'s entire body was inside his room when he opened his door. PO O'Hagan, PO Fechtmann, and PO Trentowski immediately rushed into his room. § 87(2)(b) did not consent for the officers to enter at any time, nor did he step to the side before opening the door (Board Review 06).

The investigation was unable to obtain a statement from § 87(2)(b) because she was uncooperative with the investigation (Board Review 07).

In the cellphone video provided by § 87(2)(b) to the investigation, entitled § 87(2)(g) the video begins with § 87(2)(b) pointing the camera at a door, which has a hole the size of a fist in it. At 00:02, a voice can be heard saying, § 87(2)(b) what's going on?" § 87(2)(b) says, "Do you see the hole in the door he just put? He just put a hole in the door." The video concludes (Board Review 05).

In 911 audio, § 87(2)(g), § 87(2)(b) calls and states that another resident at her apartment building, § 87(2)(b), in the Bronx, harassed her while she was in the bathroom. The unnamed resident threw her against the wall and threatened to kill her. No weapons reported. § 87(2)(b)

In 911 audio, § 87(2)(g), § 87(2)(b) calls again and names § 87(2)(b) as her assailant. She states that § 87(2)(b) hit her in the mouth just after her last call. She reports mouth injuries and bleeding and states she does not know if § 87(2)(b) has any weapons. She describes § 87(2)(b) as a tall male in § 87(2)(b) wearing white t-shirt and shorts, and lets the operator know that § 87(2)(b) is still in the building (Board Review 08).

In 911 audio, § 87(2)(g), § 87(2)(b) calls 911 and reports men claiming to be NYPD knocking his bedroom door. Knocking can be heard in the background. He states that he will not open the door because they do not have a warrant, and requests that a supervisor be sent to location (Board Review 08).

§ 87(2)(b) calls 911 again in 911 audio titled § 87(2)(g). Officers can be heard in the background asking § 87(2)(b) to open the door throughout the call. At 8:43 minutes, an officer warns § 87(2)(b) that they will "punch a hole in the door" if he does not open it. At 10:20 minutes,

an officer asks § 87(2)(b) "What happened with § 87(2)(b) Did something happen between you two?" At 11:30 minutes, § 87(2)(b) asks the officer for his shield number several times. At 15:20 minutes, an officer warns § 87(2)(b) that they will break down the door if he does not open it. At 16:40 minutes, as loud banging noises can be heard in the background, § 87(2)(b) says "They're breaking the door down. They just put a hole in the door." The dispatcher confirms NYPD is at § 87(2)(b)'s door repeatedly throughout the call (Board Review 08).

§ 87(2)(e), § 87(2)(f)

Sgt. Picarello's Unusual Occurrence Report for this incident lists the following narrative:

"PO Hackelin tax #965163 and PO Munoz tax #969242 assigned to the 45 Precinct as Sector Charlie responded to a 10-34 at § 87(2)(b) and were met by "person known to the department" who stated she had a verbal dispute with § 87(2)(b). "Person known to the department" stated there is no domestic relationship between her and § 87(2)(b). "Person known to the department" stated that the perpetrator attempted to make sexual advances towards her by trying to touch her vagina. "Person known to the department" stated she then pushed the perpetrator away and a struggle ensued. "Person known to the department" stated that during the physical altercation she suffered a laceration to her lip. "Person known to the department" then fled into her bedroom and called for police. When the mentioned officers arrived the perpetrator was locked inside of his bedroom. Officers made several attempts to establish a dialogue with the perpetrator without any success. The perpetrator was isolated and contained inside of the location. Unable to have a view of the perpetrator the mentioned officers awaited the arrival of additional resources. The undersigned Sgt. Picarello immediately responded to the location and established firearms control. The undersigned requested the response of EMS, ESU, HNT and TARU. Duty Captain, Capt piper responded to location. XO of the 45 precinct, Capt Orellano was notified.

ESU Truck 3 responded to the location and after several attempts were able to gain voluntary compliance with the perpetrator. ESU was able to successfully take the perpetrator in custody without any further incidents. The perpetrator was then placed under arrest at 1420 hours by sector Adam § 87(2)(b). Perpetrator was transported to 45th precinct from the scene. At the 45 precinct the perpetrator requested to go to § 87(2)(b) for high blood pressure" (Board Review 10).

The ESU report prepared for this incident lists the following narrative:

"Crew requested for a barricaded perp at above location. upon arrival crew was informed by 45 pct MOS that perp was locked in his bedroom refusing to open the door. Crew entered residence and immediately secured door and attempted to engage perp in conversation. Crew made a hole in the door to gain a visual inside the room of the perp. Perp than unlocked door and was taken into custody without incident. No further services required" (Board Review 11).

In PO Hackeling's BWC from the incident, titled § 87(2)(g) at 2:00 minutes, he stops in front of an apartment building and approaches the entrance. § 87(2)(b) sits on the front steps. She and PO Munoz begin speaking in Spanish. § 87(2)(b)'s lip appears to be bleeding and PO Munoz photographs her facial injuries. At 3:02 minutes, PO Munoz explains to PO Hackeling that § 87(2)(b) § 87(2)(a), and that as she was trying to fight him off, he elbowed her in the face. At 3:25 minutes, PO Munoz explains to § 87(2)(b) that they

will enter the building to locate the suspect, § 87(2)(a)

At 3:35 minutes, both officers enter the building. § 87(2)(a)
At 4:12 minutes, PO Munoz asks § 87(2)(b) her assailants name, and she responds "§ 87(2)(b)" At 4:20 minutes, PO Hackeling says § 87(2)(b) NYPD, open up." There is no response. PO Hackeling repeats himself and knocks the door several times. At 9:45 minutes, PO Hackeling explains over the phone that they will take § 87(2)(b)'s assault complaint first, and arrest § 87(2)(b) eventually. At 9:50 minutes, backup units arrive.

At 10:45 minutes, § 87(2)(b) explains that § 87(2)(b) attempted to touch her genitals, but was unsuccessful. § 87(2)(a)

At 13:22 minutes, PO Munoz explains to PO Sugrim that § 87(2)(a)

§ 87(2)(e), § 87(2)(f)

At 15:00 minutes, more backup officers arrive. Sgt. Picarello arrives at 15:11. PO Munoz tells her that "she" is the victim and that § 87(2)(b) tried to go up on her and touch her and he elbowed her in the mouth.

§ 87(2)(a)

EMS arrives at 17:41. At 18:20, someone asks if he is a "barricaded" and PO Munoz answers that they are not 100 percent sure that he is in there. At 19:11, an officer tells Sgt. Picarello that the window in the back is too small for a human to fit through.

§ 87(2)(e), § 87(2)(f). The officers resume knocking his door and asking him to open it, but again there is no response. § 87(2)(e), § 87(2)(f)

At 25:39, PO Gonzalez says, "One swift kick, and it's open." Sgt. Picarello responds, "Well, ESU..." and something inaudible. PO Gonzalez asks, "Should I just say barricaded perp?" Sgt. Picarello responds at 25:48, "Barricaded EDP."

At 26:20 minutes, PO Hackeling exits the building. He retrieves a riot shield from an NYPD vehicle and returns to his position outside of § 87(2)(b)'s door. The officers wait outside the door, occasionally knocking and asking § 87(2)(b) to step outside, for approximately fifteen minutes.

At 42:30 minutes, PO Trentowski, PO O'Hagan, and PO Fechtmann arrive and begin to knock on § 87(2)(b)'s door. PO Hackeling steps outside and returns his riot shield to the NYPD vehicle. He remains at the entrance speaking with other officers and does not reenter the building for the duration of the footage. The footage ends at 52:55 minutes (Board Review 03).

PO Fechtmann's BWC, § 87(2)(g) begins as PO Fechtmann faces § 87(2)(b)'s door. At 00:13, § 87(2)(b) opens his door and PO O'Hagan enters his room immediately. PO Fechtmann, then PO Trentowski, follow PO O'Hagan inside (Board Review 04).

Sgt. Picarello testified to the CCRB on May 24, 2022, that on July 18, 2022, at approximately 12:22 p.m., she responded to a 10-34: assault in progress at the location with her driver, Police Officer

Jacob Mizrahi of the 45th Precinct. She did not recall what specific details, if any, she received prior to arriving at the location.

EMS was also on scene treating the victim, § 87(2)(a) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED], § 87(2)(b) approached her and was trying to make sexual advances towards her. He grabbed her vagina and she pushed him away. § 87(2)(a) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] and call the police. § 87(2)(a) [REDACTED]
[REDACTED]
[REDACTED]

After around ten minutes, PO Sugrim went outside to check if § 87(2)(b) [REDACTED]'s car was still outside, and he relayed that it was. PO Sugrim learned which car was his from § 87(2)(b) [REDACTED] § 87(2)(e), § 87(2)(f) [REDACTED]
[REDACTED]
[REDACTED] Additionally, § 87(2)(b) [REDACTED] was calling 911 from the room and saying that there were officers at his door. The call from § 87(2)(b) [REDACTED] was subsumed into the same event. Some of the Spanish-speaking officers on scene were banging on § 87(2)(b) [REDACTED]'s door and telling him to come out in Spanish. At no time did Sgt. Picarello hear § 87(2)(b) [REDACTED] reply in any way. Some of Sgt. Picarello's officers went around the back of the house to see if there was another entrance but stated that they would not be able to gain entry through the back window. There was no fire escape attached to the window. Sgt. Picarello recalled seeing the window at some point, though she did not remember what it looked like. Sgt. Picarello stated that she was concerned that § 87(2)(b) [REDACTED] would try to escape through the back window, so she had a couple officers positioned outside in the case that he attempted to do so. She also feared that § 87(2)(b) [REDACTED] might run out of the room through the bedroom door, so she requested that one of the officers get a rope so they could secure the door, though she did not believe that one was ultimately retrieved.

After a few minutes of attempted conversation between officers and § 87(2)(b) [REDACTED], Sgt. Picarello requested ESU, the Tactical Assistance Response Unit, and the Hostage Negotiation Team to the location. She called ESU because they have more tactical training in how to deal with situations involving barricaded people. She let ESU know that § 87(2)(b) [REDACTED] was under arrest § 87(2)(b) [REDACTED]. She did not know whether § 87(2)(b) [REDACTED] had any weapons inside the room with him, though she did not receive any information that indicated such. She did not believe that § 87(2)(b) [REDACTED] was a threat to himself at that time. She believed that he could be a threat to other people because she did not know whether he had anything in the room with him, and anything, such as a lamp, could be used as a weapon that he could run outside of the room with. Sgt. Picarello stated that the officers stepped back from the room because there was no immediate threat that § 87(2)(b) [REDACTED] posed for the officers.

Sgt. Picarello stepped outside and called Duty Captain Piper, the borough, and operations, relating the events. When ESU arrived, all the officers exited the location. Sgt. Picarello did not remember speaking with any of the ESU officers. Duty Captain Piper arrived, and Sgt. Picarello explained what she knew about the situation. At no time did Sgt. Picarello issue any instructions to any of the ESU officers to enter § 87(2)(b) [REDACTED]'s room. However, she did tell Duty Captain Piper that she believed they needed to get § 87(2)(b) [REDACTED] out of the room, and the captain agreed with the entry.

Sgt. Picarello did not witness the entry into § 87(2)(b)'s room (Board Review 12).

PO Fechtmann testified on March 29, 2022, that on July 18, 2021, at approximately 1:30 p.m., he responded to a request from the 45th Precinct to assist with a barricaded perpetrator who refused to come out of his bedroom. He responded with PO O'Hagan, though Police Officer Daririusz Glasnapp of ESS 3 and PO Trentowski also arrived at the location in another ESU vehicle.

Upon arriving at the location PO Fechtmann spoke with a sergeant, who let PO Fechtmann know that § 87(2)(b) had assaulted someone and locked himself in his bedroom. He believed that the patrol supervisor he spoke with was male, though he did not remember the supervisor's name. PO Fechtmann could not recall how many officers were at the location when he arrived. By the time ESU arrived, the patrol officers were already inside the apartment. PO Fechtmann could not recall whether the officers were successful in speaking with § 87(2)(b) through the door. PO Fechtmann did not learn any other details regarding the nature of the assault. PO Fechtmann did not recall whether the victim of the assault sustained any injuries, nor did he speak with the victim himself. PO Fechtmann did not learn whether § 87(2)(b) locked himself in his bedroom prior to or after patrol had arrived at the location. Prior to entering the residence, PO Fechtmann spoke with the other responding ESU officers about their course of action, specifically that they would attempt to slow everything down, secure the door, and make contact with § 87(2)(b) through the door. The protocol was to gain voluntary compliance. By "slow everything down," PO Fechtmann meant clearing the scene of additional officers and speaking with § 87(2)(b) to get his side of the story. PO Fechtmann could not recall whether any of the other officers issued any commands to § 87(2)(b).

§ 87(2)(b)'s bedroom door did not have a doorknob, which ESU would normally tie to gain control of the door, so PO Fechtmann affixed a tool called a "rabbit," which is a hydraulic spreader, to spread the bottom of the door to try and pin it in the doorway. The other ESU officers successfully spoke with § 87(2)(b) though PO Fechtmann could not recall what was being said. PO Fechtmann did not speak with § 87(2)(b) through the door himself, nor did he issue any commands to § 87(2)(b). At no point did PO Fechtmann learn that § 87(2)(b) was a danger to himself. PO Fechtmann did not know whether officers stood outside § 87(2)(b)'s window, nor did he have any reason to believe that § 87(2)(b) constituted a flight risk. He did not learn where the victim was, or whether she was in police custody.

§ 87(2)(b) opened his door unexpectedly wide enough so that the officers could see his entire body. § 87(2)(b) did not stand in the doorway—his body was completely inside the room. To open the door, § 87(2)(b) pulled the door towards him. The hinges of the door were on the right side of the door from PO Fechtmann's perspective, so the gap of the door was on the left side. PO Fechtmann could not recall whether § 87(2)(b) said anything to the officers once he opened the door. PO Fechtmann did not say anything to § 87(2)(b). PO Fechtmann could not recall whether the PO O'Hagan nor PO Trentowski said anything to § 87(2)(b) at this time. PO Fechtmann did not recall whether § 87(2)(b) consented to the officers entering the room verbally or nonverbally.

PO O'Hagan and PO Trentowski attempted to grab § 87(2)(b) to arrest him. PO Fechtmann did not remember whether the officers were successful in grabbing him. The officers entered § 87(2)(b)'s room in a line. The first officer who entered was PO O'Hagan, and either PO Trentowski or PO Fechtmann was second and third. There was no other reason beyond arresting § 87(2)(b) for § 87(2)(b) § 87(2)(b) that the officers entered his room.

At some point, PO Fechtmann requested a supervisor to the location over the standard special

operations channel, but the supervisor was unavailable. He requested the supervisor because that is standard procedure with a barricaded perpetrator (Board Review 13).

PO Glasnapp's testimony to the CCRB on March 29, 2022, was consistent with PO Fechtmann's aside from the following. He stated that the specific request that came over the tactical channel from the 43rd Precinct was to assist in entering the room of § 87(2)(b) § 87(2)(b) § 87(2)(b) barricaded in his room, to make an arrest. PO Glasnapp learned that officers from the 43rd Precinct had responded to an assault, but § 87(2)(b) had barricaded himself in his room and refused to come out. He was also informed that the complainant was a § 87(2)(a) § 87(2)(b), § 87(2)(b) § 87(2)(b). While PO Glasnapp could not remember the exact details of the assault, he believed that he learned that the female was bleeding from the face at some point, somehow, during the incident.

PO Glasnapp did not recall what the location looked like. PO Glasnapp stated that before entering, ESU had to establish a reason to enter. In this instance, PO Glasnapp and the other ESU officers spoke with patrol upon their arrival, who let them know that § 87(2)(b) was not free to leave the location, which was enough to take § 87(2)(b) into custody. To PO Glasnapp's knowledge, § 87(2)(b) was not a danger to himself and there was no emergency at the location. PO Glasnapp did not know whether the alleged victim of the assault was safe or in danger at the time the officers arrived at the location. After the other ESU officers went inside, PO Glasnapp stayed outside, walking back and forth between the truck and the location to provide any kind of necessary equipment or assistance. PO Glasnapp did not recall if he ever entered the residence during this incident. PO Glasnapp was unable to see inside the house from his position outside.

PO Glasnapp stated that the determination regarding the legality of the entry would be made by a supervisor, though he did not recall whether one was on scene for this incident. In the absence of an ESU supervisor, that determination would be made by the chauffeur as per the assignment description, though the chauffeur would attempt to get in touch with a supervisor or in some cases, the NYPD legal department. PO Glasnapp contacted his supervisor in this case, though he did not recall the nature of that contact, nor whether he was the one who called the supervisor. PO Glasnapp did not recall who his supervisor was on this day. PO Glasnapp did not make the decision to enter the room and did not know which ESU officers made that decision. He clarified that in this case, there was no concern about the legality of the entry for ESU, as it appeared clear that an assault had been committed and § 87(2)(b) was not free to leave (Board Review 14).

PO O'Hagan's testimony on July 14, 2022, was largely consistent with PO Fechtmann and PO Glasnapp's, aside from the following: at no time did PO O'Hagan learn any specific information that indicated there could be another person in the room with § 87(2)(b). The officers did not let him know how many people were inside; they just told him that § 87(2)(b) was inside. Once § 87(2)(b) opened his door, PO O'Hagan entered the room because they had probable cause to arrest § 87(2)(b). There was no other reason for his entry. PO O'Hagan attempted to grab § 87(2)(b) because he opened the door suddenly and without warning. As a result, PO O'Hagan did not know whether he had any weapons in his hands. PO O'Hagan did not see whether § 87(2)(b) was holding anything in his hands, as he was looking at the upper portion of his body. At no time did § 87(2)(b) invite the officers into their room, nor did he communicate to the officers nonverbally that they could enter his room. He did not step to the side of the door when he opened it (Board Review 15).

Payton v. New York, 445 U.S. 573 determined that the police are prohibited from making a warrantless and nonconsensual entry into a suspect's home to make a routine felony arrest (Board

Review 16).

United States v. Martinez-Gonzalez, 686 F.2d 93, 100 [2d Cir 1982], *United States v. Reed*, 572 F.2d 412, 424 [2d Cir 1978], and *People v. McBride*, 14 N.Y.3d 440 established that in determining whether exigent circumstances are present for purposes of a warrantless entry into a home, the following factors must be considered: (1) the gravity or violent nature of the offense with which the suspect is to be charged, (2) whether the suspect is reasonably believed to be armed, (3) a clear showing of probable cause to believe that the suspect committed the crime, (4) strong reason to believe that the suspect is in the premises being entered, (5) a likelihood that the suspect will escape if not swiftly apprehended, and (6) the peaceful circumstances of the entry. The ultimate inquiry a suppression court must make is whether considering all the facts, there is an urgent need that justifies a warrantless entry (Board Review 17).

In *People v. Ponto*, 103 AD2d 573, 578, 480 NYS2d 921 (1984), the court affirmed the suppression of physical evidence obtained from a warrantless search on the basis that the landlord lacked authority to consent to an entry into the defendant's room as the defendant had "an expectation of privacy in his leased living space" (Board Review 18).

The investigation pleaded the entry against PO O'Hagan because while Sgt. Picarello, the highest-ranking officer on scene at the time, called ESU officers to the location to apprehend § 87(2)(b) and communicated to them that he was under arrest, she did not instruct the officers explicitly to enter his room. She testified that her reason for calling ESU was because they received more extensive training regarding "barricaded perpetrators," which can include gaining their voluntary compliance. Additionally, both PO O'Hagan and Sgt. Picarello testified that it was procedure for other officers to clear the scene once ESU responded to a job, so Sgt. Picarello was not in a position to oversee ESU's actions. As PO O'Hagan was the first officer to enter § 87(2)(b)'s room, it would not have been reasonable for PO Trentowski and PO Fechtmann to leave PO O'Hagan alone in the room with an alleged perpetrator of an assault. No officer specifically instructed PO O'Hagan to enter § 87(2)(b)'s room.

PO O'Hagan did not know whether § 87(2)(b) was a threat to himself. He did not have any specific information indicating that § 87(2)(b) had any weapons in his room, nor that he would use any item as a weapon at the time he arrived. While PO O'Hagan testified that he did not know whether anyone else was in the room with § 87(2)(b), he stated that his only reason for entering was to arrest him. Objectively, there was no emergency nor exigent circumstances at the time of the ESU response, as § 87(2)(b) was already in police custody and as officers stood outside § 87(2)(b)'s window, he did not pose a flight risk. To PO O'Hagan's knowledge, § 87(2)(b) lived in a private bedroom of a house with other roommates, and thus was entitled to a reasonable expectation of privacy there. While PO O'Hagan stated that § 87(2)(b) stood at the threshold of his room when he opened his door, BWC clearly depicts § 87(2)(b) standing with his full body inside his room. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

The ESU report indicates that the crew, which consisted of PO O'Hagan, PO Trentowski, and PO Fechtmann, made a hole in § 87(2)(b)'s door to gain a visual inside the room. § 87(2)(g)

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Allegation (E) Force: Police Officer Daniel Trentowski restricted § 87(2)(b)'s breathing.
Allegation (F) Force: Police Officer Brian Fechtmann restricted § 87(2)(b)'s breathing.
Allegation (G) Force: Police Officer John O'Hagan restricted § 87(2)(b)'s breathing.

§ 87(2)(b) testified that once the ESU officers entered his room, they pinned him face-down onto his bed, and two of the officers placed their knees on § 87(2)(b)'s back and buttocks while they attempted to handcuff him. § 87(2)(b) could not remember whether any of the officers issued any commands at this time. § 87(2)(b) told the officers that he was having difficulty breathing and asked to be stood upright, at which time the officers finished handcuffing him and stood him on his feet. The officers then brought § 87(2)(b) his shoes and a shirt and escorted him out of the house (Board Review 06).

§ 87(2)(b)'s medical records § 87(2)(b) indicate that no fracture or dislocation was observed (Board Review 19).

In PO Fechtmann's BWC, once the officers enter § 87(2)(b)'s room, PO O'Hagan uses his riot shield to push § 87(2)(b) onto his bed in the middle of the room, then pin him face-down onto his bed with the shield positioned on § 87(2)(b)'s left shoulder at 00:26. PO Fechtmann walks over the § 87(2)(b)'s left side and holds his left arm, while PO Trentowski walks over to the other side of the bed by § 87(2)(b)'s head and attempts to assist getting hold of his right arm. At 00:26, PO Fechtmann places § 87(2)(b)'s left hand behind his back while PO O'Hagan's shield is still placed on his back. § 87(2)(b)'s back is not visible in the frame until 00:35. At that time, nothing other than PO Fechtmann's right arm makes contact with § 87(2)(b)'s back. Officers continue to place both of § 87(2)(b)'s arms behind his back, though § 87(2)(b) continuously pulls them forward. At 00:50, PO O'Hagan sits on § 87(2)(b)'s legs while attempting to handcuff him with his upper body. Officers successfully handcuff § 87(2)(b) at 1:02 and lift him from the bed (Board Review 4).

Sgt. Picarello testified that she did not know how the ESU officers got § 87(2)(b) out of the location. She did not know whether the duty captain was inside with ESU when they got § 87(2)(b) out of the room. She did not know whether any force was used against § 87(2)(b). The officers came outside with § 87(2)(b) and there was an ambulance at the location. § 87(2)(b) was complaining of high blood pressure, so one of the officers took him to the hospital to be treated. There was no other reason that he was removed to the hospital (Board Review 12).

PO Fechtmann testified that once the officers entered § 87(2)(b)'s room, § 87(2)(b) pulled away and jumped onto his bed, which was in the center of the room. PO Fechtmann, PO O'Hagan, and PO Trentowski attempted to handcuff § 87(2)(b) who was placing his hands underneath his body. Eventually, officers succeeded in handcuffing § 87(2)(b). PO Fechtmann briefly participated in handcuffing § 87(2)(b) though he did not recall the extent of his participation. PO Fechtmann denied using any other force against § 87(2)(b) than placing his arm behind his back to handcuff him. He did not witness any other officer do so. PO Fechtmann did not recall whether § 87(2)(b) sustained any injuries as a result of this struggle. He also did not remember whether § 87(2)(b) did anything else with his body to resist. PO Fechtmann did not recall whether any officer place a knee on § 87(2)(b)'s back, nor did he recall doing so himself. The three officers then brought § 87(2)(b) downstairs and handed him over to personnel of the 45th Precinct (Board Review 13).

PO Glasnapp testified that given that he was outside, he did not see any officers place their knees

on § 87(2)(b)'s back (Board Review 14).

PO O'Hagan's testimony was consistent with PO Fechtmann's. PO O'Hagan stated that he got onto § 87(2)(b)'s bed and placed his shield onto § 87(2)(b)'s left shoulder and arm area to prevent his from moving around or leaving the bed. PO O'Hagan was not sure where the other two officers were. § 87(2)(b) tensed his body and did not give up his hands. At no time did PO O'Hagan place his shield onto § 87(2)(b)'s back. At no time did PO O'Hagan nor any other officer place a knee onto § 87(2)(b)'s back (Board Review 15).

§ 87(2)(g) BWC does not capture § 87(2)(b)'s back for nine seconds in the video. § 87(2)(b) lifts his torso at 00:31 seconds, which indicates that no knee restricted the movement of his back at that time. Given that four seconds between 00:31 and 00:35, when § 87(2)(b)'s back is visible § 87(2)(g)

§ 87(2)(b) BWC does not capture an officer place a knee onto § 87(2)(b)'s back at any other point in the video. § 87(2)(b) the officers denied placing their knees on his back or seeing any officer do so. § 87(2)(g)

Allegation (H) Abuse of Authority: Police Officer Brian Fechtmann searched § 87(2)(b) in the Bronx.

Allegation (I) Abuse of Authority: Police Officer John O'Hagan searched § 87(2)(b) in the Bronx.

Slide eight of the "Barricaded Sections" of the ESU Participant Guide for entries states that the actions ESU officers must take upon enacting an entry include searching the room. Slide nine relates that in conducting a cursory room search, officers should "search where a person can hide" (Board Review 20).

In PO Fechtmann's BWC, At 2:30 minutes, PO Trentowski escorts § 87(2)(b) out of his room. At 2:38, PO Fechtmann and PO O'Hagan lift the mattress of § 87(2)(b)'s bed and look underneath it. They place it back down at 2:40. They lift it again at 2:45, shine a flashlight onto the bed, then drop it back down. Both officers lift § 87(2)(b)'s bed frame at 2:50 and drop it at 3:00. At 3:31 PO Fechtmann shines a light inside § 87(2)(b)'s closet and moves the coats hanging inside around. He moves a bag on the closet floor, then shines a flashlight into the closet again at 3:44. At 3:50, he touches § 87(2)(b)'s jackets and shines at light. He finishes search the closet at 3:56. At 4:23, both officers walk over to § 87(2)(b)'s dresser and PO Fechtmann lifts and moves several bags and clothing articles that lie on the floor in front of it. PO Fechtmann exits the room at 4:45 and the footage ends at 4:54 minutes (Board Review 04).

PO Fechtmann testified that once § 87(2)(b) left the room, he conducted a sweep of the room in all the locations that somebody could hide with PO O'Hagan. He did not have any specific information indicating that any other people were in the room, or that there were any weapons inside the room, but searched the location because a protocol calls for a protective sweep. He could not specifically remember where they searched but assumed that it was probably in the closet and under the bed. He stated that the officers were only looking for people during this sweep, and thus did not open any compartments where a person could not reasonably hide (Board Review 13).

PO O'Hagan's testimony was consistent with PO Fechtmann's. He stated that the officers conducted this search because this is part of ESU training, which PO O'Hagan participated in at the academy weeks prior to this incident. There was no other reason other than to abide by this protocol that they conducted a search (Board Review 15).

In *Maryland v. Buie* (494 U.S., 108 L. Ed. 2d 276, 281 [Feb. 28, 1990]), the Supreme Court defined a “protective sweep” as “a quick and limited search of a premises, incident to an arrest and conducted to protect the safety of police officers or others,” narrowly confined to a cursory visual inspection of areas in which a person could reasonably hide. The court concluded that the Fourth Amendment permitted protective sweeps undertaken if the searching officer “possesse[d] a reasonable belief based on ‘specific and articulable facts which, taken together with the rational inferences from those facts, reasonably warrant[ed]’ the officer in believing, that the area swept harbored an individual posing a danger to the officer or others” (Board Review 21).

Neither PO Fechtmann nor PO O’Hagan articulated a belief based on any tangible facts that the area swept in their cursory search of § 87(2)(b)’s room would pose a danger to any of the officers, nor that any individual or victim was hiding in the room. They stated that the reason for the cursory search was solely because it is a part of their training, which is confirmed by training materials.

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§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- Sgt. Picarello has been a member of service for eleven years and has been a subject in two other CCRB complaints and four other allegations, none of which were substantiated.
- PO O’Hagan has been a member of service for seven years and has been a subject in one other CCRB complaint and one other allegation, which was not substantiated.
- PO Trentowski has been a member of service for eight years and has been a subject in four other CCRB complaints and six other allegations, none of which were substantiated.
- PO Fechtmann has been a member of service for nine years and has been a subject in two other CCRB complaints and four other allegations, none of which were substantiated.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of July 14, 2022, a Notice of Claim FOIL request was filed with the New York City Office of the Comptroller (Board Review 23). The results are pending.
- § 87(2)(b)

§ 87(2)(b)

Squad: 8

Investigator: Stephanie Dukich Inv. Stephanie Dukich July 18, 2022
Signature Print Title & Name Date

Squad Leader: Ethan De Angelo IM Ethan De Angelo July 19, 2022
Signature Print Title & Name Date

Reviewer: _____
Signature Signature Print Title & Name Date
Signature Print Title & Name Date